

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF**

-----X

Plaintiff,

Index No.: _____

- against -

Part No.: _____

Defendant.

-----X

**PRELIMINARY CONFERENCE STIPULATION/ORDER
CONTESTED MATRIMONIAL**

PRESIDING: Hon. _____

Justice of the Supreme Court

The parties and counsel have appeared before this Court on _____
at a preliminary conference on this matter held pursuant to 22 NYCRR §202.16.

A. BACKGROUND INFORMATION:

1. Summons: Date filed: _____ Date served: _____

2. Date of Marriage: _____

3. Name(s) and date(s) of birth of child(ren):

Name: _____ DOB: _____

Name: _____ DOB: _____

Name: _____ DOB: _____

Name: _____ DOB: _____

Phone: _____

Fax: _____

Email: _____

(Date Filed **OR** To Be Filed)

Defendant ☐ Yes ☐ No

Issue Date: _____

Issuing Court: _____

Currently in Effect? ☐ Yes ☐ No

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8. (a) Please identify and state the nature of any Premarital, Marital, Separation or other Agreements and/or Orders which affect the rights of either of the parties in this action.

- (b) Plaintiff/Defendant shall challenge the Agreement dated _____ by _____. If no challenge is asserted by that date, it is waived unless good cause is shown

B. GROUNDS FOR DIVORCE:

1. The Complaint (was) (or will be) served on: _____
2. A Responsive Pleading (was) (or will be) served on: _____
3. Reply to Counterclaim, if any, (was) (or will be) served on: _____
4. The issue of grounds is ☐ **resolved** ☐ **unresolved**.

If the issue of grounds is **resolved**, the parties agree that Plaintiff/Defendant will proceed on an uncontested basis to obtain a divorce on the grounds of DRL § 170(7) and the parties waive the right to serve a Notice to Discontinue pursuant to CPLR 3217(a) unless on consent of the parties.

5. Other: _____

C. CUSTODY:

1. The issue of parenting time is ☐ **resolved** ☐ **unresolved**.
2. The issues relating to decision-making are ☐ **resolved** ☐ **unresolved**.
 - (a) If the issues of custody, including parenting time and decision-making, are resolved: The parties are to submit an agreement/stipulation no later than _____.

(b) If the parties do not notify the Court that all issues related to custody are resolved, a conference shall be held on _____ at which time the Court shall determine the need for an Attorney for the Child/Guardian ad Litem and/or a forensic evaluation and set a schedule for resolving all issues relating to custody.

3. ☐ **ATTORNEY FOR CHILD(REN) or GUARDIAN AD LITEM:** Subject to judicial approval, the parties request that the Court appoint an Attorney for the parties' minor child(ren) ("AFC"). The cost of the AFC's services shall be paid as follows:

☐ **FORENSIC:** Subject to judicial approval, the parties request that the Court appoint a neutral forensic expert to conduct a custody/parental access evaluation of the parties and their child(ren). Subject to Judicial approval, the cost of the forensic evaluation shall be paid as follows:

Any appointment of an Attorney for the Child/Guardian ad Litem or forensic evaluator shall be by separate order which shall designate the individual appointed, the manner of payment, source of funds for payment, and each party's responsibility for such payment.

D. FINANCIAL:

1. Maintenance is ☐ **resolved** ☐ **unresolved**
2. Child Support ☐ **resolved** ☐ **unresolved**
3. Equitable Distribution is ☐ **resolved** ☐ **unresolved**
4. Counsel Fees are ☐ **resolved** ☐ **unresolved**

List all other causes of action and ancillary relief issues that are **unresolved**.

Any issues not specifically listed in this Order as unresolved may not be raised in this action unless good cause is shown.

E. OTHER:

List all other causes of action and ancillary relief issues that are unresolved.

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F. PENDENTE LITE RELIEF:

See annexed Order _____

See annexed Stipulation _____

G. DISCOVERY:

1. Preservation of Evidence:

- (a) **Financial Records:** Each party shall maintain all financial records in his or her possession or under his or her control through the date of the entry of a judgment of divorce.
- (b) **Electronic Evidence:** For the relevant periods relating to the issues in this litigation, each party shall maintain and preserve all electronic files, other data generated by and/or stored on the party's computer system(s) and storage media (*i.e.* hard drives, floppy disks, backup tapes), or other electronic data. Such items include, but are not limited to, e mail and other electronic communications, word processing documents, spreadsheets, data bases, calendars, telephone logs, contact manager information, internet usage files, offline storage or information stored on removable media, information contained on laptops or other portable devices, and network access information.

2. **Document Production:**

- (a) No later than _____ days after the date of this Order, the parties shall exchange the following records for the following periods:

Time Period

_____ Federal, state and local tax returns, including all schedules, K-1s, 1099s, W-2s and similar data.

_____ Credit card statements for all credit cards used by a party.

_____ Checking account statements, cancelled checks and check registers for joint and individual accounts.

_____ Brokerage account statements for joint and individual accounts.

_____ Savings account statements for joint and individual accounts.

_____ Other: (specify) _____

Absent any specified time period, the records listed above are to be produced for the **three years** prior to the commencement of this action through the present. If a party does not have complete records for the time period, the party shall provide a written authorization to obtain such records directly from the source within five days of presentation.

- (b) Service of Notice For Discovery and Inspection:
Plaintiff: ____/____/____ **Defendant:** ____/____/____
- (c) Responses to Notice for Discovery and Inspection:
Plaintiff: ____/____/____ **Defendant:** ____/____/____
- (d) Service of Interrogatories:
Plaintiff: ____/____/____ **Defendant:** ____/____/____
- (e) Response to Interrogatories:
Plaintiff: ____/____/____ **Defendant:** ____/____/____
- (f) Interrogatories:
Interrogatories are limited to 25 including subparts unless the parties stipulate, or the court orders otherwise. In this proceeding ☐ The parties stipulate OR ☐ the court orders _____ Interrogatories including subparts.

(g) Depositions:

Plaintiff to be deposed on or before _____.

Defendant to be deposed on or before _____.

Nonparties who may be deposed are _____.

Nonparty depositions shall be completed by _____.

All depositions shall be limited to 7 hours in length, except as follows

(h) Electronically Stored Information:

Parties and non-parties should adhere to the Guidelines on Electronically Stored Information contained in Appendix A to the Uniform Civil Rules for Supreme and County Courts in accordance with 22 NYCRR 202.20(j).

(h) Privilege Logs:

The Court ☐ orders OR ☐ declines to order that the provisions of 22 N.Y.C.R.R. §202.20-a relating to privilege logs be applicable to this case.

Failure to comply with the provisions of this section may result in sanctions, including the award of legal fees, and other penalties.

H. VALUATION/FINANCIAL EXPERTS

1. **Neutral Experts** – The parties request that the Court appoint a neutral expert to value the following:

The cost of the valuations shall be paid (subject to reallocation): _____ % Plaintiff
and _____ % Defendant

(a) Deferred compensation/Retirement assets _____

(b) Business interest _____

(c) Professional practice _____

(d) Real property _____

(e) Stock options, stock plans or other benefit plan _____

(f) Intellectual property _____

(g) Other (identify):

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The parties agree that the appointment of the neutral expert as specified above, shall be pursuant to a separate order which shall designate the neutral expert, what is to be valued, the manner of payment, the source of funds for payment, and each party's responsibility for such payment if not agreed above.

If the Court does not appoint the neutral expert(s) requested above simultaneously with the signing of this Order, then the parties may suggest names for the Court to consider appointing. Said names shall be submitted by letter no later than _____.

The parties shall notify the Court no later than _____ as to whether any other neutral experts are required.

2. Experts to be Retained by a Party:

Each party shall select his/her own expert to value

_____.
The expert shall be identified to the other party by letter with their qualifications and retained no later than _____. If a party requires fees to retain an expert and the parties cannot agree upon the source of the funds, an application for fees shall be made. Any expert retained by a party must represent to the party hiring such expert that he or she is available to proceed promptly with the valuation.

Expert reports are to be exchanged by _____. Absent any date specified, they are to be exchanged 60 days prior to trial or 30 days after receipt of the report of the neutral expert, whichever is later. Reply reports are to be exchanged 30 days after service of an expert report.

3. Additional Experts:

If, as of the date of this order, a net worth statement has not been served or a party cannot identify all assets for valuation or cannot identify all issues for an expert, then, upon the parties' becoming aware of such assets or issues, that party promptly shall notify the other party as to any assets for valuation or any issue for which an expert is needed. If the parties cannot agree upon a neutral expert or the retention of individual experts, either party may notify the Court for appropriate action. Timely application shall be made to the Court if assistance is necessary to implement valuation or the retention of an expert.

I. HEALTH INSURANCE COVERAGE NOTICE:

Each party fully understands that upon the entry of a divorce judgment, he/she may no longer be allowed to receive health coverage under his/her former spouse's health insurance plan. Each party understands that he/she may be entitled to purchase health insurance on his/her own through a COBRA option, if available, otherwise he/she may be required to secure his/her own health insurance coverage.

J. AUTOMATIC STATUTORY RESTRAINTS (D.R.L. §236[B][2])

Each party acknowledges that he/she has received a copy of the Automatic Statutory Restraints/Automatic Orders (D.R.L. §236[B][2]). Each party acknowledges that he/she understands that he/she is bound by those Restraints/Orders during the pendency of this action, unless terminated, modified, or amended by order of the Court upon motion of either party or upon written agreement between the parties duly executed and acknowledged.

K. PARENT EDUCATION:

The Court: ☐ has provided information as to parent education.
☐ has taken no action with respect to parent education.
☐ hereby orders the parties to attend parent education.

L. ALTERNATE DISPUTE RESOLUTION/PRESUMPTIVE MEDIATION:

The parties ☐ are OR ☐ are not aware of the existence of presumptive mediation, collaborative processes and other alternative dispute resolution methods.

M. NOTICE OF GUIDELINE MAINTENANCE

Each party acknowledges receipt of the following notice from the Court:

If your divorce was commenced on or after January 25, 2016, this Notice is required to be given to you by the Supreme Court of the county where your divorce was filed to comply with the Maintenance Guidelines Law ([S. 5678/A. 7645], Chapter 269, Laws of 2015) because you may not have counsel in this action to advise you. **It does not mean that your spouse is seeking or offering an award of “Maintenance” in this action. Maintenance” means the amount to be paid to the other spouse for his or her support, either during the pendency of the divorce action as temporary maintenance or after the divorce is final as post-divorce maintenance.**

You are hereby given notice that under the Maintenance Guidelines Law (Chapter 269, Laws of 2015), there is an obligation to award the guideline amount of maintenance on income up to \$241,000 (eff. 3/1/26) to be paid by the party with the higher income (the maintenance payor) to the party with the lower income (the maintenance payee) according to a formula, unless the parties agree otherwise or waive this right. Depending on the incomes of the parties, the obligation might fall on either the Plaintiff or Defendant in the action.

There are two formulas to determine the amount of the obligation. If you and your spouse have no children, the higher formula will apply. If there are children of the marriage, the lower formula will apply, but only if the maintenance payor is paying child support to the other spouse who has the children as the custodial parent. Otherwise the higher formula will apply.

Lower Formula

- (a) Multiply Maintenance Payor’s Income by 20%.
- (b) Multiply Maintenance Payee’s Income by 25%.
- (c) Subtract Line b from Line a: = **Result 1**
- (d) Subtract Maintenance Payee’s Income from 40 % of Combined Income* = **Result 2.**
- (e) Enter the lower of **Result 2** or **Result 1**, but if less than or equal to zero, enter zero.

**THIS IS THE CALCULATED GUIDELINE AMOUNT OF MAINTENANCE
WITH THE LOWER FORMULA**

Higher Formula

- (a) Multiply Maintenance Payor's Income by 30%
- (b) Multiply Maintenance Payee's Income by 20%
- (c) Subtract Line b from Line a= **Result 1**
- (d) Subtract Maintenance Payee's Income from 40 % of Combined Income*=
Result 2
- (e) Enter the lower of **Result 2** or **Result 1**, but if less than or equal to zero, enter zero.

THIS IS THE CALCULATED GUIDELINE AMOUNT OF MAINTENANCE WITH THE HIGHER FORMULA

***Combined Income equals Maintenance Payor's Income up to \$241,000 (eff. 3/1/26)
plus Maintenance Payee's Income**

**The Court is not bound by the Guideline Amount of Maintenance and may deviate
therefrom in the Court's discretion as set forth in the statute.**

**The Court will determine, in its discretion, how long maintenance will be paid in
accordance with the statute.**

N. CONFERENCING AND PRE-TRIAL REQUIREMENTS

1. ☐ Both parties are represented by Counsel, and the parties affirm that their Counsel met prior to the submission of this Preliminary Conference Stipulation/Order in a good faith effort to reach agreement without Court intervention, and this Preliminary Conference Stipulation/Order reflects the agreements, if any, so reached. OR ☐ This provision is not applicable because one or both parties is unrepresented.
2. ☐ Both parties are represented by Counsel, and Counsel shall meet prior to the compliance conference scheduled below in a good faith effort to resolve any outstanding issues without Court intervention. OR ☐ This provision is not applicable because one or both parties is unrepresented; and the conference will occur with the Court.
3. ☐ Both parties are represented by Counsel, and each party intends to call an expert witness on any issues of finances described in Paragraph D of this Preliminary Conference Stipulation/Order, and Counsel shall meet to identify those aspects of their respective testimony not in dispute. OR ☐ This provision is not applicable because one or both parties is unrepresented, or because the expert testimony relates to matters of child custody or parental access, domestic violence, domestic abuse, or child neglect or abuse; and the conference will occur with the Court.
4. The Court directs that the parties and their respective counsel are to appear at a compliance conference to be held on _____ at _____ am/pm. All discovery as set forth herein above is expected to be completed prior to the compliance conference. At the conference, counsel shall also be prepared to discuss settlement.
5. The Court has determined that:
 - (i) the requirements of NYCRR section 202.34 regarding pre-marking of exhibits
☐ shall not apply OR ☐ shall apply;
 - (ii) Exhibit Books ☐ shall not be required OR ☐ shall be required
 - (iii) Pre-Trial Memoranda ☐ shall not be required OR ☐ shall be required

6. A Note of Issue shall be filed on or before _____. Failure to file a Note of Issue as directed herein may result in dismissal pursuant to CPLR 3216.

THE TRIAL IN THIS MATTER SHALL BE HELD ON:

_____ in part/room _____ at _____.

All of the above is hereby stipulated to by the parties:

Plaintiff (Signature)

Defendant (Signature)

Plaintiff (Print Name)

Defendant (Print Name)

Plaintiff's Attorney (Signature)

Defendant's Attorney (Signature)

Plaintiff's Attorney (Print Name)

Defendant's Attorney (Print Name)

Dated: _____, 20_____

SO ORDERED:

Justice of the Supreme Court

☐ **There is no addendum to this Preliminary Conference Order.**

☐ **There is an addendum of _____ pages which is attached to this Preliminary Conference Order.**

☐ **Where the parties wish to execute this document in counterparts, there is a Counterparts Addendum to this Preliminary Conference Order.**

COUNTERPARTS ADDENDUM IF SIGNED SEPARATELY

Plaintiff (Signature)

Plaintiff (Print Name)

Plaintiff's Attorney (Signature)

Plaintiff's Attorney (Print Name)

Dated: _____, 20____

COUNTERPARTS ADDENDUM IF SIGNED SEPARATELY

Defendant (Signature)

Defendant (Print Name)

Defendant's Attorney (Signature)

Defendant's Attorney (Print Name)

Dated: _____, 20____

COUNTERPARTS ADDENDUM IF SIGNED SEPARATELY

Dated: _____, 20____

SO ORDERED:
